



DECISION

Complaint No. : POS/6594/2021/R.Thar/2021.

Name and address of the complainant : Mst. Sabul wd/o Manak Sand
r/o Village Roherro
Taluka Mithi, District Tharpakar.

Name of the Agency Complained against : Local Government

Name & Designation of Investigating Officer : Mr. Muhammad Umar Panhwar
Regional Director Tharparkar @Mithi.

Vetted by : Dr. Khalil-ur-Rahman Shaikh, Advisor- I

Subject : ALLEGED DELAY IN PAYMENT OF SERVICE DUES IN RESPECT OF DECEASED HUSBAND OF THE COMPLAINANT, WHO WAS CLERK IN LOCAL GOVERNMENT MITHI AND EXPIRED DURING SERVICE ON 30.10.2020.

THE COMPLAINT

Mst. Sabul wd/o Manak Ali Sand submitted a complaint dated 10.12.2021 regarding delay in payment of financial dues after demise of her husband who was clerk in Local Government Department, Mithi.

PROCEEDINGS

2. The complaint was admitted under Section 10 of Establishment of the Office of Ombudsman for the Province of Sindh Act 1991.
3. The matter was taken up with the Additional Director, Local Government Department, Tharparkar at Mithi vide letter dated 10.03.2022 followed by series of reminders last dated 16.08.2022. The Additional Director vide letter dated 27.09.2022 requested the Administrator/ Chief Officer, District Council Tharparkar to release gratuity and financial assistance to the complainant. The matter was also taken up vide letter dated 17.11.2022 with the Secretary, Local Government and Housing Town Planning Department, Government of Sindh.
4. The Secretary, Union Council Posakro (Old name) (currently named as Malanhore Veena) stated vide letter dated 15.02.2024 that amount of Rs.214000/- was paid to Mst. Sabul on account of gratuity of her husband. Hearing was fixed on 20.05.2025 vide letter dated 05.05.2025. The Secretary of the concerned Union Council attended the hearing and submitted report vide letter dated 20.05.2025 stating that the commutation/ gratuity is to be paid to the legal heirs of those deceased whose service period is more than 10 years but in this case the total length of service at the credit of deceased is 8 years 01 month and 20 days which is not sufficient for such benefits. He further stated that the husband of the complainant was an employee of Union Council Malanhore which is an autonomous body having its own service regulations for pension and other benefits and conditions.

5. The matter was again taken up with the Local Government and Housing Town Planning Department vide letter dated 08.07.2025. The department vide letter dated 21.08.2025 stated that according to Notification dated 05.06.2020 *“all benefits including gratuity Medical reimbursement and Financial Assistance in case of death during service of employees of Union Councils / Union Committees shall be paid by concerned district councils / Municipal Corporation and monthly pension of all the concerned employees shall be paid by concerned Union Council / Union Committees”* and necessary directions have already been conveyed to the concerned quarters. The Chief Officer, District Council Tharparkar was called upon to furnish compliance report vide letter dated 04.09.2025. He submitted his report. Subsequently, the matter was again taken up with the Local Government and Housing Town Planning vide letter dated 06.10.2025 to resolve the issue of financial assistance of widow of late Manak Sand as the Chief Officer, District Council, Tharpark at Mithi had shown his inability to pay financial assistance to her. The Regional Director, Local Government Mirpurkhas vide letter dated 17.02.2026 forwarded a copy of letter dated 17.02.2026 written by Chief Officer, District Council, Tharparkar at Mithi stating that cheque amounting Rs.1,200,000/- has been issued in respect of Mst. Sabul Khatoon widow of late Manak Sand, Ex-Junior Clerk (BPS-11) of Union Council on account of financial assistance. Mst. Sabul Khatoon was contacted on her mobile phone to get confirmation of this claim. Her brother Mr. Muhammad Usman received phone call and confirmed that cheque had been received and deposited in the bank.

DECISION

6. In view of above facts, I in exercise of powers conferred under Section 11 of the Establishment of the Ombudsman for the Province of Sindh Act, 1991, dispose of this case as complaint has been redressed.

Given under my hand and seal of Office



Sd/-

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz-PAS

Ombudsman, Sindh

Karachi, dated 11th March, 2026